

Amendment No. 7 to HB2539

Lamberth
Signature of Sponsor

AMEND Senate Bill No. 2227*

House Bill No. 2539

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 53-10-309, is amended by deleting the first two sentences.

SECTION 2. Tennessee Code Annotated, Section 63-1-125(b)(1), is amended by deleting the subdivision and substituting:

(1) "Board" means a health-related board created in this title or title 68 and includes:

(A) The board for professional counselors, marital and family therapists, and clinical pastoral therapists, created by § 63-22-101;

(B) The board of alcohol and drug abuse counselors, created by § 68-24-601;

(C) The board of occupational therapy, created by § 63-13-216;

(D) The board of examiners in psychology, created by § 63-11-102; and

(E) The board of social work licensure, created by § 63-23-101; and

SECTION 3. Tennessee Code Annotated, Section 63-1-125(e), is amended by adding the following as a new subdivision:

(5) A person licensed under chapter 11 of this title.

SECTION 4. Tennessee Code Annotated, Section 63-1-164(f), is amended by deleting the subsection.

SECTION 5. Tennessee Code Annotated, Section 63-1-314, is amended by deleting the section.

SECTION 6.

(a) Tennessee Code Annotated, Section 63-6-221(h), is amended by deleting "The board shall enter into a memorandum of understanding, contract or other written arrangement with the health facilities commission such that the commission:" and substituting:

The department's investigators are authorized on behalf of the board to do the following:

(b) Tennessee Code Annotated, Section 63-6-221(h)(1), is amended by deleting "Provides" and substituting "Provide".

(c) Tennessee Code Annotated, Section 63-6-221(h)(2), is amended by deleting "Is authorized to require" and substituting "Require".

(d) Tennessee Code Annotated, Section 63-6-221(h)(3), is amended by deleting "Is authorized to initiate" and substituting "Initiate".

(e) Tennessee Code Annotated, Section 63-6-221(h)(4), is amended by deleting "Is authorized to respond" and substituting "Respond".

SECTION 7. Tennessee Code Annotated, Section 63-6-221(i), is amended by deleting the subsection and substituting:

(i) The results of all site surveys must be transmitted to the board. The results must include any requirement for plans of correction, the determination of the acceptability of the submitted plans of correction, and the verification that the plans of correction have been implemented. The board shall make a final determination on certifying the surgical suite for performance of office-based surgeries. The results of site surveys and board determinations must be shared on a routine basis with the board for licensing health care facilities.

SECTION 8. Tennessee Code Annotated, Section 68-1-120, is amended by deleting the section and substituting:

By December 31, 2026, and by each December 31 thereafter, the department of health shall publish an annual report stating the total number of attempted suicides and completed suicides that have occurred in this state using the most recent year of final data available. The department of health shall submit the report electronically to all members of the general assembly within seven (7) calendar days of the publication.

SECTION 9. Tennessee Code Annotated, Section 68-1-128(h)(4), is amended by deleting the subdivision.

SECTION 10. Tennessee Code Annotated, Section 68-1-128, is amended by adding the following as a new subsection:

(j) The commissioner shall annually report to the chairs of the health and welfare committee of the senate and the committee of the house of representatives having jurisdiction over prescribers of controlled substances a summary of the data concerning prescribers identified pursuant to this section, disciplinary actions taken against those prescribers or taken related to prescription drug abuse or pain management clinics, distribution and abuse of controlled substances, and access to the controlled substance database.

SECTION 11. Tennessee Code Annotated, Section 68-1-147(a)(4), is amended by deleting the subdivision and substituting:

(4) "Palliative care" means specialized care focused on providing relief from physical, psychological, and spiritual suffering, in order to maximize quality of life for both the patient and family, that is provided for people facing a health condition that carries a high risk of mortality, and:

- (A) Negatively impacts a person's daily function;
- (B) Negatively impacts a person's quality of life; or
- (C) Excessively strains the person's caretaker.

SECTION 12. Tennessee Code Annotated, Title 68, Chapter 1, Part 1, is amended by adding the following as a new section:

(a) When legislation is enacted by the general assembly that requires a board administratively attached to the department to promulgate rules in a prescribed period of time, the board retains the exclusive authority to promulgate the rules until sixty (60) days before the effective date of the legislation.

(b) If the board has not promulgated emergency rules and scheduled the rulemaking hearing on permanent rules at least sixty (60) days before the effective date of the legislation, then the commissioner becomes the exclusive authority to promulgate the rules as described in subsection (a). Upon the receipt of such authority, the commissioner shall, in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5:

(1) Promulgate emergency rules, in accordance with § 4-5-208, within the time required by the legislation; and

(2) Promulgate permanent rules within one hundred eighty (180) days of the effective date of the emergency rules.

(c) Upon the completion of the requirements of subsection (b), the exclusive authority to promulgate rules reverts to the board. The board may, at that time, amend the permanent rules in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5.

(d) The rules promulgated by the commissioner in accordance with subsection (b) remain in full force and effect, the same as if promulgated by the board, unless and until the rules are amended by the board.

SECTION 13. This act takes effect July 1, 2026, the public welfare requiring it.